

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:
Date Filed:

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SHARIF LUCAS,

Plaintiffs.

Plaintiff designates
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where cause of action
arose

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER ALEX
VIERA (Shield # 14168); POLICE OFFICER MARK
POLLARD (Shield # 6221; Tax # 916458); POLICE
OFFICER MATTHEW ROSIELLO (Shield # 20090)
and POLICE OFFICERS JOHN DOE 1-5,

The plaintiff resides at:
Kings County, New York

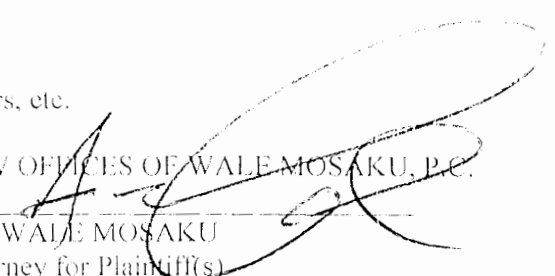
Defendants.
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
March 17, 2015

Yours, etc.


LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.

SHARIF LUCAS,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER ALEX
VIERA (Shield # 14168); POLICE OFFICER MARK
POLLARD (Shield # 6221; Tax # 916458); POLICE
OFFICER MATTHEW ROSIELLO (Shield # 20090)
and POLICE OFFICERS JOHN DOE 1-5,

Defendants.

-----X

SHARIF LUCAS (hereinafter "plaintiff"), by his attorney(s), THE LAW OFFICES OF
WALE MOSAKU, P.C., complaining of the defendants THE CITY OF NEW YORK,
POLICE OFFICER ALEX VIERA (Shield # 14168); POLICE OFFICER MARK
POLLARD (Shield # 6221; Tax # 916458); POLICE OFFICER MATTHEW ROSIELLO
(Shield # 20090) and POLICE OFFICERS JOHN DOE 1-5 (collectively referred to as
the Defendants), upon information and belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the law and statutes of the City and/or State of New York.

THE PARTIES

2. At all times material to this complaint, plaintiff was, and he still is, a resident of the City of New York, who at all times material and relevant to this complaint resided, and still resides, in Kings County,

City and State of New York. Plaintiff is an African American male of full age.

3. At all relevant times, defendants POLICE OFFICER ALEX VIERA (Shield # 14168); POLICE OFFICER MARK POLLARD (Shield # 6221; Tax # 916458); POLICE OFFICER MATTHEW ROSIELLO (Shield # 20090) and POLICE OFFICERS JOHN DOE 1-5 (collectively referred to as "defendant officer(s)"), of the New York City Police Department (hereinafter "NYPD"), upon information and belief, were, and still are, law enforcement officers in the employ of the NYPD.
4. At all times herein, the defendant officers were employed as law enforcement officers of the NYPD, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officers, through its Police Department, namely the NYPD, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. The plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on July 17, 2014, within ninety days after the claims alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or his representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to

the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff's claim was assigned Claim No. 2014P1022741.

8. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.

9. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTUAL ALLEGATIONS

10. On or about June 2, 2014 at approximately 06:00 p.m., in front of the premises described as 1488 Sterling Place, Brooklyn, New York (subject location), the plaintiff was falsely arrested and thereafter assaulted without probable cause by the respondent officers.

11. At the time of the incident, the plaintiff was waiting for his friend, namely Cleveland London, who resides in an apartment located within 1488 Sterling Place, Brooklyn, New York.

12. As the plaintiff was waiting, he observed a marked police vehicle approach his location. As the marked police vehicle arrived at his location, the defendant officers Viera and Pollard exited the vehicle and without warning, grabbed the plaintiff and attempted to place him in handcuffs.

13. The plaintiff asked the defendant officers Viera and Pollard what was going on, and in response, was instructed to get down onto the ground. The plaintiff complied with the defendant officers Viera and Pollard's instructions.

14. As soon as the plaintiff complied with the defendant officers Viera and Pollard's instructions, he was placed in handcuffs.

15. After the plaintiff was placed in handcuffs, he was then informed by the defendant officers Viera and Pollard that he "*fit the description*" of a robbery suspect.

16. At this juncture, as the plaintiff was laying on the ground, with his hands cuffed behind his back, other defendant officers, including Police Officer Rosiello arrived at the scene.
17. One of the arriving defendant officers (described as an African American male) then stomped on the plaintiff with his NYPD issued boots as the plaintiff lay defenseless on the ground.
18. The plaintiff immediately started to bleed profusely from his mouth, chin and right ear.
19. As a result of the defendant officers' respective actions, the plaintiff sustained an abrasion to his right cheek; an abrasion to his left breast; an abrasion to his right shoulder; and a laceration to his right ear.
20. After the plaintiff was arrested and assaulted as set forth above, he was then placed in a squad vehicle and transported to the 77th police precinct.
21. While he was in the squad car, the plaintiff could hear messages being relayed over the defendant officers' walkie-talkies, and was able to hear that the person being sought in fact had blond hair.
22. The plaintiff did not have blond hair at the time of his arrest.
23. Upon arrival at the 77th police precinct, because of the injuries that he had sustained, and following his repeated complaints and requests for medical assistance, the plaintiff was caused to be transported to Woodhull Medical and Mental Health Center ("Woodhull") by EMS, located at 760 Broadway, Brooklyn, New York 11206, where he was treated and released to the custody of the defendant officers.
24. Upon his discharge from Woodhull Hospital, the plaintiff was taken back to a police precinct.
25. Upon his arrival at the police precinct, the plaintiff was processed, or otherwise photographed and fingerprinted.
26. While he was at the 77th precinct, the plaintiff was interviewed by officers from the NYPD Internal Affairs Bureau ("IAB").

27. Said IAB officers also took photographs of the plaintiff's injuries, and thereafter conducted a photo array procedure, at which time the plaintiff identified the African American officer who had stomped on his face.
28. Subsequently, the plaintiff was transported to "*central booking*", situated within the Kings County Criminal Courthouse located at 120 Schermerhorn Street, Brooklyn New York 11201.
29. At approximately 11:00 p.m. on June 3, 2014, the plaintiff was arraigned before a criminal court judge on the following charges:
- a. Resisting Arrest [P.L. 205.30];
 - b. Criminal Possession of Marijuana in the 5th Degree [P.L. 221.10(1)]; and
 - c. Unlawful Possession of Marijuana [P.L. 221.05].
30. The criminal complaint was signed under oath by defendant Police Officer Alex Viera.
31. The allegations contained in the criminal complaint were blatant lies and a complete fabrication.
32. Upon arraignment, the plaintiff pleaded "not guilty", and was released upon his own recognizance.
33. On November 10, 2014, the criminal matter was adjourned in contemplation of dismissal.
34. The docket number of the Kings County Criminal Court is 2014KN041061.

CAUSE OF ACTION: UNLAWFUL SEARCH UNDER 42 U.S.C § 1983

35. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 34 of this complaint as though fully set forth herein.
36. Following the plaintiff's arrest, the defendants searched and/or caused the plaintiff and/or his property to be searched, without any individualized reasonable suspicion that he was concealing weapons or contraband.

37. As a result of the foregoing, the plaintiff and/or his property was/were subjected to an illegal and improper search. The foregoing unlawful search violated the plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
42 U.S.C. § 1983/NEW YORK STATE LAW

38. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 37 of this complaint as though fully set forth herein.
39. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
40. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
41. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.
42. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
43. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE OF ACTION: EXCESSIVE FORCE UNDER 42 U.S.C § 1983

44. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 43 of this complaint as though fully set forth herein.
45. The level of force employed by one or more of the defendant officers was objectively unreasonable and in violation of the plaintiff's constitutional rights.
46. As a result of the aforementioned conduct of the defendants, the plaintiff was subjected to excessive force, resulting in serious, severe, and permanent physical injuries.

CAUSE OF ACTION: DENIAL OF A CONSTITUTIONAL RIGHT TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO THE FABRICATION OF EVIDENCE

47. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 46 of this complaint as though fully set forth herein.
48. The individual defendants created false evidence against the plaintiff.
49. The individual defendants forwarded false evidence and false information to the prosecutors in the Kings County District Attorney's office.
50. That said defendants were directly involved in the initiation of criminal proceedings against the plaintiff.
51. That said defendants lacked probable cause to initiate criminal proceedings against the plaintiff.
52. That said defendants acted with malice in initiating criminal proceedings against the plaintiff.
53. That said defendants were directly involved in the continuation of criminal proceedings against the plaintiff.
54. That said defendants lacked probable cause in continuing criminal proceedings against the plaintiff.
55. That said defendants acted with malice in continuing criminal proceedings against the plaintiff.

56. That said defendants misrepresented and falsified evidence throughout all phases of the criminal proceeding.
57. That said defendants misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's office.
58. That said defendants withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
59. That said defendants did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
60. By creating false evidence against the plaintiff; forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, the defendants violated the plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.
- As a consequence of said defendants' actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION: FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

61. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 60 of this complaint as though fully set forth herein.
62. Each and every individual defendant had an affirmative duty to intervene on the plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
63. The individual defendants failed to intervene on the plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.

64. As a consequence of said defendants' actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION: ASSAULT AND BATTERY

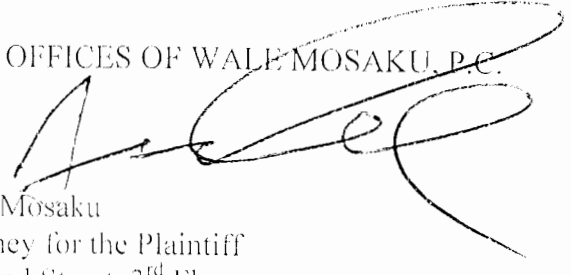
65. Plaintiff repeats and realleges paragraphs 1 through 64 as if each paragraph is repeated verbatim herein.
66. At the time of the plaintiff's arrest by the defendants, the plaintiff did not challenge nor resist the defendants, nor engage in any threatening behavior towards the defendants.
67. However, as set forth above, the defendants assaulted the plaintiff, battered the plaintiff, and subjected the plaintiff to excessive force and summary punishment.
68. The defendants were at all material times acting within the scope of their employment.
69. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendants, individually and severally.
70. The defendants were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendants acts as described above.
71. This action, upon information and belief, falls within one or more of the exceptions of CPLR 1602.

WHEREFORE, plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of

money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
March 17, 2015

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.

SHARIF LUCAS,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

THE CITY OF NEW YORK, POLICE OFFICER ALEX
VIERA (Shield # 14168); POLICE OFFICER MARK
POLLARD (Shield # 6221; Tax # 916458); POLICE
OFFICER MATTHEW ROSIELLO (Shield # 20090)
and POLICE OFFICERS JOHN DOE 1-5,

Defendants.

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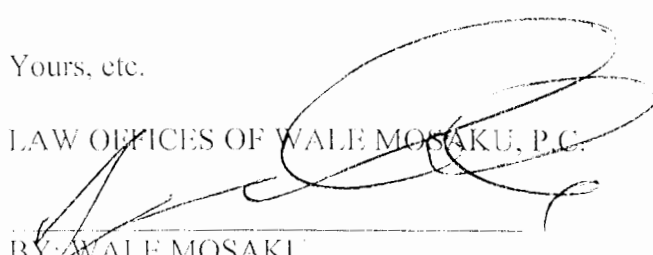
The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
March 17, 2015

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.


BY: WALE MOSAKU
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #:

SHARIF LUCAS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER ALEX
VIERA (Shield # 14168); POLICE OFFICER MARK
POLLARD (Shield # 6221; Tax # 916458); POLICE
OFFICER MATTHEW ROSIELLO (Shield # 20090)
and POLICE OFFICERS JOHN DOE 1-5,

Defendants.

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200_

Attorneys for Defendant(s)
